

§ 1014. Transfer to and from family court; concurrent proceedings. (a)

The family court may transfer upon a hearing any proceedings originated under this article to an appropriate criminal court or may refer such proceeding to the appropriate district attorney if it concludes, that the processes of the family court are inappropriate or insufficient. The family court may continue the proceeding under this article after such transfer or referral and if the proceeding is continued, the family court may enter any preliminary order, as authorized by section one thousand twenty-seven, in order to protect the interests of the child pending a final order of disposition.

(b) Any criminal complaint charging facts amounting to abuse or neglect under this article may be transferred by the criminal court in which the complaint was made to the family court in the county in which the criminal court is located, unless the family court has transferred the proceeding to the criminal court. The family court shall then, upon a hearing, determine what further action is appropriate. After the family court makes this determination, any criminal complaint may be transferred back to the criminal court, with or without retention of the proceeding in the family court, or may be retained solely in the family court, or if there appears to be no basis for the complaint, it may be dismissed by the family court. If the family court determines a petition should be filed, proceedings under this act shall be commenced as soon as practicable.

(c) Nothing in this article shall be interpreted to preclude concurrent proceedings in the family court and a criminal court.

(d) In any hearing conducted by the family court under this section, the court may grant the respondent or potential respondent testimonial immunity in any subsequent criminal court proceeding.